

CHAPTER 3.

An Act to relieve railway companies whose railroads are under the control of His Majesty from keeping separate accounts in respect of railway passenger duty, and from making separate payments in respect thereof.

[28th March 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. A railway company whose railroad is under the control of His Majesty's Government in pursuance of section sixteen of the Regulation of the Forces Act, 1871, shall, during any period after the commencement of this Act for which their railway is so under the control of His Majesty's Government, be relieved of any obligation to keep the separate accounts and make the separate entries in respect of railway passenger duty required by section four of the Railway Passenger Duty Act, 1842 (as amended by section thirteen of the Revenue Act, 1863, and section seven of the Cheap Trains Act, 1883, or any other enactment), or to make any separate payments as required by those enactments in respect of railway passenger duty for that period, and shall be deemed to have been relieved of any such obligation in respect of any duty for the period between the end of the year nineteen hundred and sixteen and the commencement of this Act.

Suspension of obligation to keep separate accounts and make separate payments in respect of railway passenger duty.

34 & 35 Vict. c. 86.

5 & 6 Vict.

c. 79.

26 & 27 Vict.

c. 33.

46 & 47 Vict.

c. 34.

2. This Act may be cited as the Railway Passenger Duty Act, 1917.

Short title.

CHAPTER 4.

An Act to provide for the Suspension of Grand Juries in connection with the present War. [28th March 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) No precept for the summoning of a grand jury or grand jurors shall be issued nor shall any grand jury be summoned, and any such precept or summons in existence at the date of the commencement of this Act shall be void and of no effect, so far as it relates to grand juries or grand jurors.

Suspension of grand juries.

(2) In any case where a person has been committed for trial, or where the consent or direction in writing of a judge of the High Court or of the Attorney-General or Solicitor-General for

the presentment of an indictment against any person has been given, but in no other case, an indictment against that person may be presented in the appropriate court without having been found by a grand jury, but in other respects as heretofore; and where an indictment is so presented it shall be proceeded with in like manner as if a true bill had been found and presented in the court by a grand jury, and the statute and common law relating to such proceedings shall apply accordingly:

Provided that where an indictment is so authorised to be presented in any court it shall be lawful for that court to authorise the addition of other counts to the indictment or the presentment in the court of any further indictment against the same person, if such counts or indictment are in the opinion of that court founded on facts or evidence disclosed in any examination or deposition taken before a justice of the peace in the presence of the accused.

(3). Where a person is bound by recognizance to prosecute a person who is not committed for trial the recognizance shall require him to apply to a judge of the High Court or the Attorney-General or Solicitor-General for consent to present an indictment, and in the event of such consent not being obtained the recognizance shall be void, and where at the commencement of this Act a person has been bound by such a recognizance the recognizance shall have effect as if it contained such a requirement as aforesaid.

5 & 6 Geo. 5.
c. 90.

(4) The First Schedule to the Indictments Act, 1915, shall apply to all indictments presented in a court in pursuance of this Act, except that the words "presentment of the grand jury" required by Rule 2 in the said Schedule shall be omitted.

(5) Where the form of any recognizance or other instrument (statutory or otherwise) relating to procedure as to indictable offences contains a reference to a grand jury, such reference shall be omitted, and the rule committee established by the Indictments Act, 1915, shall make rules for making such variations in such forms and instruments, and for such other purposes as they think expedient for carrying this Act into effect.

(6) For the purposes of this section, the expression "appropriate court" means the court to which the accused is committed for trial (that is to say, the court specified in the recognizance entered into by the prosecutor or witnesses before the committing justices) or which is specified in the consent or direction given by a judge of the High Court or the Attorney-General or Solicitor-General as the case may be.

Short title,
extent, com-
mencement,
and duration.

2.—(1) This Act may be cited as the Grand Juries (Suspension) Act, 1917.

(2) This Act shall not extend to Scotland or Ireland.

(3) This Act shall come into operation on the second day of April nineteen hundred and seventeen, but shall not apply

to indictments found by a grand jury before that date or the procedure on the trial of indictments so found.

(4) This Act shall remain in force only during the continuance of the present war and for a period of six months after the termination thereof.

CHAPTER 5.

An Act to enable Ecclesiastical Services in certain cases to be omitted on account of the War.

[28th March 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) No clerk in holy orders shall be liable to any penalty whatsoever, or to any action or other legal proceeding, in respect of the omission of all or any public services or duties in or in connection with any church, chapel, or other place of public worship, if the omission of those services or duties is for the time being authorised in writing by the bishop of the diocese ; and the bishop of the diocese shall have power to give and to withdraw, as occasion requires, an authority for that purpose.

Power to suspend temporarily ecclesiastical services.

(2) Where under this Act the services in any church, chapel, or other place of worship are entirely suspended, the Marriage Act, 1824 (which provides for the publication of banns and the solemnisation of matrimony elsewhere in the case of a church or chapel during the repair or rebuilding thereof), shall apply in the case of a church, chapel, or place where the services are so suspended in the same manner as it applies in the case of a church or chapel during the repair or rebuilding thereof.

5 Geo. 4. c. 32.

(3) The expression " bishop " in relation to the diocese of an archbishop includes the archbishop.

2.—(1) This Act may be cited as the Ecclesiastical Services (Omission on account of War) Act, 1917.

Short title and duration.

(2) The power to give an authority under this Act shall have effect only during the continuance of the present war and a period of three months thereafter ; and any authority given under this Act shall cease to have effect at the expiration of that period.